

Anand Kumar v. State of U.P. & 2 Others

Allahabad High Court · Division Bench · 17 February 2023 · WRIT - C No. 32847 of 2022 · **Writ petition disposed of (direction to process the tenant's connection application)**

HEADNOTE

Under the U.P. Electricity Supply Code, 2005 a 'premises' (Clause 2(ss)) is the specific portion for which a connection is sought, and a tenant is an 'occupier' (Clause 2(oo)) with a statutory right to apply for supply. The arrears-bar in the third proviso to Clause 4.1 operates only against dues on the same premises; by Clause 4.3(h) a licensee cannot refuse a new connection to an occupier of a distinct sub-premises on the ground that dues on other portions of the building are unpaid, and must instead pursue the defaulters under Clause 4.3(f)(v). A tenant may obtain a connection on an indemnity bond (Annexure 4.2, Clause 4.4) where the owner's consent is absent.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.1

Arrears-bar is premises-specific; connection to a tenant/occupier of a distinct premises

QUESTION

Can a licensee refuse a new connection to a tenant of a shop because of electricity dues outstanding against other portions of the same building?

HOLDING

No. The arrears-bar in the third proviso to Clause 4.1 applies only to dues on the same 'premises' (Clause 2(ss)); the shop is a distinct premises and the tenant is an 'occupier' (Clause 2(oo)) entitled to apply. Clause 4.3(h) forbids refusal on the ground of dues on other portions; the licensee must instead pursue the defaulters under Clause 4.3(f)(v). ¶ 11, 14, 16-18

LIMITING FACTS

No dues were specific to the shop occupied by the petitioner; the alleged dues were against other persons/portions of the building.

HOLDING-UNIT · UP-2005::4.4

Tenant's connection on an indemnity bond absent owner's consent

HOLDING

Following Seema Mansoor, an occupier (including a tenant) has a statutory right to supply under Sections 42-43 read with Clause 4.4; where the owner's consent is unavailable, the tenant may file an indemnity bond (Annexure 4.2) to obtain the connection. ¶ 12

PRINCIPLE TAGS

arrears-bar-is-premises-specific The bar on a new connection for arrears attaches only to the specific premises in default, not to other portions of a building. ¶ 11, 17

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LANDLORD-TENANT RELATIONSHIP

The Court expressly declined to record any finding on the landlord-tenant relationship; the direction is only to process the connection application after hearing the owner. ¶ 19-20

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	TREATMENT
<i>Seema Mansoor v. U.P. Power Corporation & 3</i>	An occupier (including a tenant) has a statutory right under Sections 42-43 and	Followed and relied on to hold the tenant entitled to have the application processed.	Followed

AUTHORITY	PROPOSITION	HOW TREATED	TREATMENT
<i>Others</i> 2014 (6) ADJ 672 [80741415] Allahabad High Court	Clause 4.4 of the Code to apply for and obtain supply; where the owner's consent is absent, the indemnity-bond route (Annexure 4.2) is available.	¶ 12-13	

SCJ-006 · Anand Kumar v. State of U.P. & 2 Others · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.